

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 3845

By: Harris of the House

and

7 **Howard** of the Senate

8
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10 COMMITTEE SUBSTITUTE

11 An Act relating to marriage and family; amending 43
12 O.S. 2021, Section 139, which relates to legal rights
13 to child support; allowing the discretionary
14 revocation of driver permits and licenses; amending
15 43 O.S. 2021, Section 139.1, which relates to
16 penalties; allowing revocation of driving privileges
17 for failure to pay child support; directing Service
18 Oklahoma to revoke or suspend licenses under certain
19 conditions; providing for codification; and providing
20 an effective date.

21 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

22 SECTION 1. AMENDATORY 43 O.S. 2021, Section 139, is
23 amended to read as follows:

24 Section 139. The Legislature finds and declares that child
support is a basic legal right of the state's parents and children,
that mothers and fathers have a legal obligation to provide
financial support for their children and that child support payments

1 can have a substantial impact on child poverty and state welfare
2 expenditures. It is therefore the Legislature's intent to encourage
3 payment of child support to decrease overall costs to the state's
4 taxpayers while increasing the amount of financial support collected
5 for the state's children by authorizing the district courts of this
6 state and the Department of Human Services to order the revocation,
7 suspension, nonissuance or nonrenewal of any recreational license or
8 permit, or permit including, but not limited to, a hunting and
9 fishing license or other authorization issued pursuant to the
10 Oklahoma Wildlife Conservation Code, Section 1-101 et seq. of Title
11 29 of the Oklahoma Statutes, and certificates of title for vessels
12 and motors and other licenses of registration issued pursuant to the
13 Oklahoma Vessel and Motor Registration Act, Section 4001 et seq. of
14 Title 63 of the Oklahoma Statutes, and the driving privilege of or
15 to order probation for a parent who is in noncompliance with an
16 order for support for at least ninety (90) days or failing, after
17 receiving appropriate notice to comply with subpoenas or warrants
18 relating to paternity or child support proceedings.

19 SECTION 2. AMENDATORY 43 O.S. 2021, Section 139.1, is
20 amended to read as follows:

21 Section 139.1. A. As used in this section and Section 6-201.1
22 of Title 47 of the Oklahoma Statutes:
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1 1. "Licensing board" means any bureau, department, division,
2 board, agency or commission of this state or of a municipality in
3 this state that issues a license;

4 2. "Noncompliance with an order for support" means that the
5 obligor has failed to make child support payments required by a
6 child support order in an amount equal to the child support payable
7 for at least ninety (90) days or has failed to make full payments
8 pursuant to a court-ordered payment plan for at least ninety (90)
9 days or has failed to obtain or maintain health insurance coverage
10 as required by an order for support for at least ninety (90) days or
11 has failed, after receiving appropriate notice to comply with
12 subpoenas or orders relating to paternity or child support
13 proceedings or has failed to comply with an order to submit to
14 genetic testing to determine paternity;

15 3. "Order for support" means any judgment or order for the
16 support of dependent children or an order to submit to genetic
17 testing to determine paternity issued by any court of this state or
18 other state or any judgment or order issued in accordance with an
19 administrative procedure established by state law that affords
20 substantial due process and is subject to judicial review;

21 4. "License" means any recreational license or permit
22 including, but not limited to, a hunting and fishing license or
23 other authorization issued pursuant to the Oklahoma Wildlife
24 Conservation Code, or certificates of title for vessels and motors

1 and other licenses or registrations issued pursuant to the Oklahoma
2 Vessel and Motor Registration Act, or a driver license or other
3 permit issued pursuant to Title 47 of the Oklahoma Statutes;

4 5. "Obligor" means the person who is required to make payments
5 or comply with other provisions of an order for support;

6 6. "~~Oklahoma~~ Child Support Services (~~OCSS~~ CSS)" means the ~~state~~
7 ~~agency~~ Child Support Services Division of the Department of Human
8 Services designated to administer a statewide plan for child support
9 pursuant to Section 237 of Title 56 of the Oklahoma Statutes;

10 7. "Person entitled" means:

11 a. a person to whom a support debt or support obligation
12 is owed,

13 b. the ~~OCSS~~ CSS or a public agency of another state that
14 has the right to receive current or accrued support
15 payments or that is providing support enforcement
16 services, or

17 c. a person designated in a support order or as otherwise
18 specified by the court; and

19 8. "Payment plan" includes, but is not limited to, a plan
20 approved by the court that provides sufficient security to ensure
21 compliance with a support order and/or that incorporates voluntary
22 or involuntary income assignment or a similar plan for periodic
23 payment on an arrearage and, if applicable, current and future
24 support.

1 B. 1. Except as otherwise provided by this subsection, the
2 district courts of this state are hereby authorized to order the
3 revocation, suspension, nonissuance or nonrenewal of a license or
4 the placement of the obligor on probation who is in noncompliance
5 with an order for support.

6 2. Pursuant to Section 3 of this act, the district or
7 administrative courts of this state are hereby authorized to order
8 the revocation or suspension of a driver license of an obligor who
9 is in noncompliance with an order of support.

10 3. The remedy under this section is in addition to any other
11 enforcement remedy available to the court.

12 C. 1. At any hearing involving the support of a child, after
13 giving notice to the obligor that licenses may be suspended or
14 revoked, if the district court finds evidence presented at the
15 hearing that an obligor is in noncompliance with an order for
16 support and the obligor is licensed by any licensing board, the
17 court, in addition to any other enforcement action available, may
18 suspend or revoke the license of the obligor who is in noncompliance
19 with the order of support or place the obligor on probation pursuant
20 to paragraph 2 of this subsection.

21 2. a. To be placed on probation, the obligor shall agree to
22 a payment plan to:
23
24

1 (1) make all future child support payments as
2 required by the current order during the period
3 of probation, and

4 (2) pay the full amount of the arrearage:

5 (a) by lump sum by a date certain, if the court
6 determines the obligor has the ability, or

7 (b) by making monthly payments in addition to
8 the monthly child support amount pursuant to
9 Section 137 of this title.

10 b. The payments required to be made pursuant to this
11 section shall continue until the child support
12 arrearage and interest which was the subject of the
13 license revocation action have been paid in full.

14 3. If the court orders probation, the appropriate licensing
15 board shall not be notified and no action is required of that board.

16 4. If the obligor is placed on probation, the obligor shall be
17 allowed to operate a motor vehicle.

18 5. Probation shall be conditioned upon full compliance with the
19 order. If the court grants probation, the probationary period shall
20 not exceed three (3) years from the date of entry of the initial
21 order of revocation or probation.

22 ~~5. 6.~~ If the obligor is ~~placed on probation~~ not in compliance
23 with the terms of probation, the obligee or ~~OCSS~~ CSS may ~~request a~~
24 ~~hearing~~ file a notice at any time ~~to review the status of the~~

1 ~~obligor's compliance with the payment plan and to request~~ with the
2 court for immediate suspension or revocation of the obligor's
3 license. The obligor shall be served with notice of the hearing by
4 regular mail to the obligor's address of record pursuant to Section
5 112A of this title.

6 ~~6. If, by the completion of time allotted for the probationary~~
7 ~~period, the obligor has failed to fully comply with the terms of~~
8 ~~probation, the licenses of the obligor shall be automatically~~
9 ~~suspended or revoked without further hearing. If the licenses of~~
10 ~~the obligor are suspended or revoked, the obligor may thereafter~~
11 ~~apply for reinstatement in compliance with subsection D or E of this~~
12 ~~section.~~

13 ~~D. When all support due is paid in full and the obligor has~~
14 ~~complied with all other provisions of the order for support, the~~
15 ~~obligor, the obligee or OCSS may file a motion with the court for~~
16 ~~reinstatement of the obligor's licenses or termination of probation~~
17 ~~and the motion shall be set for hearing. If the court finds the~~
18 ~~obligor has paid all support due in full and has complied with all~~
19 ~~other provisions of the order for support, the court shall reinstate~~
20 ~~the obligor's licenses or terminate the probation~~ The obligor may
21 request a hearing within thirty (30) days to show cause that the
22 licenses of the obligor should not be suspended or revoked. If the
23 obligor does not request a hearing within such time period, the
24 court shall order immediate suspension or revocation of the

1 obligor's licenses. If the licenses of the obligor are suspended or
2 revoked, the obligor may subsequently apply for reinstatement
3 pursuant to subsection D or E of this section.

4 ~~E. D.~~ 1. ~~An obligor whose~~ When an obligor's licenses have been
5 suspended or revoked, the obligor, the obligee, or CSS may ~~file a~~
6 ~~motion with request~~ the court for reinstatement of to reinstate the
7 licenses ~~of the obligor prior to payment in full of all support due~~
8 ~~and the motion shall be set for hearing.~~

9 2. The court ~~may~~ shall reinstate the licenses of the obligor if
10 the obligor has:

- 11 a. paid all support due in full or paid the current child
12 support and the monthly arrearage payments each month
13 for the current month and two (2) months immediately
14 preceding, or paid an amount equivalent to three (3)
15 months of child support and arrearage payments which
16 satisfies the current child support and monthly
17 arrearage payments for the current month and two (2)
18 months immediately preceding,
- 19 b. disclosed all information regarding health insurance
20 availability and obtained and maintained health
21 insurance coverage required by an order for support,
- 22 c. complied with all subpoenas and orders relating to
23 paternity or child support proceedings,
24

d. complied with all orders to submit to genetic testing to determine paternity, and

e. disclosed all employment and address information.

3. If the obligor has not met the conditions in paragraph 2 of this subsection, the court may reinstate licenses upon a showing that reinstatement of licenses would increase the likelihood of the obligor paying consistent, reliable child support or for good cause shown. If the court terminates the order of suspension, revocation, nonissuance or nonrenewal, it ~~shall~~ may place the obligor on probation, ~~conditioned upon compliance with any payment plan and the provisions of the order for support.~~

~~4. If the obligor fails to comply with the terms of probation, the court may refuse to reinstate the licenses of the obligor unless the obligor makes additional payments in an amount determined by the court to be sufficient to ensure future compliance, and the obligor complies with the other terms set by the court.~~

~~F. The obligor shall serve on the custodian or the state a copy of the motion for reinstatement of the licenses of the obligor and notice of hearing pursuant to Section 2005 of Title 12 of the Oklahoma Statutes, or if there is an address of record, by regular mail to the address of record on file with the central case registry pursuant to Section 112A of this title. When child support services are being provided pursuant to Section 237 of Title 56 of the Oklahoma Statutes, the obligor shall serve a copy of the motion for~~

1 ~~reinstatement of the licenses of the obligor on OCSS~~ Probation
2 shall not exceed three (3) years from the date of entry of the
3 initial order of revocation or probation.

4 ~~G.~~ E. If the court orders termination of the order of
5 suspension or revocation, the obligor shall send a copy of the order
6 reinstating the licenses of the obligor to the licensing board, the
7 custodian and ~~OCSS~~ CSS when child support services are being
8 provided pursuant to Section 237 of Title 56 of the Oklahoma
9 Statutes.

10 ~~H.~~ F. Entry of this order does not limit the ability of the
11 court to issue a new order requiring the licensing board to revoke
12 or suspend the license of the same obligor in the event of another
13 delinquency or failure to comply.

14 ~~I.~~ G. Upon receipt of a court order to suspend or revoke the
15 license of an obligor, the licensing board shall comply with the
16 order by:

17 1. Determining if the licensing board has issued a license to
18 the individual whose name appears on the order for support;

19 2. Notifying the obligor of the suspension or revocation;

20 3. Demanding surrender of the license, if required;

21 4. Entering the suspension or revocation of the license on the
22 appropriate records; and

23 5. Reporting the suspension or revocation of the license as
24 appropriate.

1 ~~J.~~ H. Upon receipt of a court order to not issue or not renew
2 the license of an obligor, the licensing board shall implement by:

3 1. Determining if the licensing board has received an
4 application for issuance or renewal of a license from the individual
5 whose name appears on the order of support;

6 2. Notifying the obligor of the nonissuance or nonrenewal; and

7 3. Entering the nonissuance or nonrenewal of the license as
8 appropriate.

9 ~~K.~~ I. An order, issued by the court, directing the licensing
10 board to suspend, revoke, not issue or not renew the license of the
11 obligor shall be processed and implemented by the licensing board
12 without any additional review or hearing and shall continue until
13 the court or appellate court advises the licensing board by order
14 that the suspension, revocation, nonissuance or nonrenewal is
15 terminated.

16 ~~L.~~ J. The licensing board has no jurisdiction to modify,
17 remand, reverse, vacate, or stay the order of the court for the
18 suspension, revocation, nonissuance or nonrenewal of a license.

19 ~~M.~~ K. In the event of suspension, revocation, nonissuance or
20 nonrenewal of a license, any funds paid by the obligor to the
21 licensing board for costs related to issuance, renewal, or
22 maintenance of a license shall not be refunded to the obligor.

23 ~~N.~~ L. A licensing board may charge the obligor a fee to cover
24 the administrative costs incurred by the licensing board to

1 administer the provisions of this section. Fees collected pursuant
2 to this section by a licensing board which has an agency revolving
3 fund shall be deposited in the agency revolving fund for the use by
4 the licensing board to pay the costs of administering this section.
5 Otherwise, the administrative costs shall be deposited in the
6 General Revenue Fund of the state.

7 ~~Θ.~~ M. Each licensing board shall promulgate rules necessary for
8 the implementation and administration of this section.

9 ~~P.~~ N. The licensing board is exempt from liability to the
10 obligor for activities conducted in compliance with Section 139 et
11 seq. of this title.

12 ~~Θ.~~ O. The provisions of this section may be used to revoke or
13 suspend the driving privileges of the custodian of a child who fails
14 to comply with an order to submit to genetic testing to determine
15 paternity.

16 P. A final order entered pursuant to this section may be
17 appealed to the Supreme Court of Oklahoma pursuant to Section 990A
18 of Title 12 of the Oklahoma Statutes.

19 SECTION 3. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 6-201.1A of Title 47, unless
21 there is created a duplication in numbering, reads as follows:

22 A. 1. Whenever a court or the Department of Human Services
23 Child Support Office of Administrative Hearings, hereinafter
24 referred to as "OAH", finds that a person is not in compliance with

1 an order of child support, the court or the OAH, as applicable,
2 shall require the person to surrender to it the driver license held
3 by the person and shall forward to Service Oklahoma an order to
4 revoke the driving privilege of the person, together with any driver
5 license surrendered to the court or OAH.

6 2. Upon receipt of an order from a court or from the OAH, that
7 a person obligated to pay child support and who owns or operates a
8 motor vehicle is not in compliance with an order for support,
9 Service Oklahoma shall revoke the person's driving privilege. Any
10 order of the court or the OAH, as applicable, to revoke a person's
11 driving privilege for noncompliance with an order of support shall
12 be upon a Notification of Revocation form prescribed by Service
13 Oklahoma. Service Oklahoma shall prepare and distribute the
14 Notification form to be used by the courts and the OAH.

15 3. In addition to Service Oklahoma, the court or the OAH, as
16 applicable, shall send a copy of the Notification of Revocation to
17 the person obligated to pay child support by first class, postage
18 prepaid mail. The Notification shall:

- 19 a. include the name, address, date of birth, physical
20 description and, if known, the driver license number
21 of the person,
22 b. provide notification of the requirement of Service
23 Oklahoma to revoke the driving privilege of the person
24 required to pay child support,

1 c. provide notification of the requirement of Service
2 Oklahoma to not reinstate the person's driving
3 privilege until:

4 (1) the court or the OAH issues a release that states
5 such person is in compliance with the order of
6 support or until a court or the OAH otherwise
7 authorizes reinstatement of the person's driving
8 privilege, and

9 (2) the person has paid to Service Oklahoma the fees
10 required by Section 6-212 of Title 47 of the
11 Oklahoma Statutes and has met all other statutory
12 requirements for reinstatement of the person's
13 driving privilege,

14 d. specify the reason and statutory grounds for the
15 revocation and the effective date of the revocation,

16 e. inform the person that in order to apply for
17 reinstatement of the person's driving privilege, the
18 person must obtain a release from the OAH or the
19 court, as applicable, and

20 f. inform the person that the person may file a petition
21 for judicial review of the Notification of Revocation
22 in district court within thirty (30) days after
23 receipt of the Notification.
24

1 D. Upon receipt of the Notification of Revocation from a court
2 or the OAH, as applicable, that a person obligated to pay child
3 support is not in compliance with an order of support, Service
4 Oklahoma shall, in addition to any other authority to withdraw
5 driving privileges, revoke the driving privilege of the person named
6 in the notification provided in subsection C of this section without
7 hearing.

8 E. 1. The court or the OAH shall furnish a release to Service
9 Oklahoma whenever a person, whose driving privilege has been revoked
10 pursuant to this section, has established and is complying with a
11 payment schedule, as determined by the court or the OAH. Upon
12 receipt of such release, Service Oklahoma shall reinstate the
13 driving privileges of the person, if the person is otherwise
14 eligible, pursuant to Section 6-212 of Title 47 of the Oklahoma
15 Statutes;

16 2. If the person defaults on the payment schedule, the court or
17 OAH may resubmit the notice of noncompliance as provided for in this
18 section. The court or the OAH shall furnish a release to Service
19 Oklahoma whenever the person is once again complying with the
20 payment schedule, as determined by the court or the OAH. Upon
21 receipt of such release, Service Oklahoma shall reinstate the
22 driving privileges of the person, if the person is otherwise
23 eligible, pursuant to Section 6-212 of Title 47 of the Oklahoma
24 Statutes; and

1 3. A person whose driving privilege has been revoked for
2 noncompliance due to defaulting on a payment schedule pursuant to
3 paragraph 2 of this subsection shall be required to meet all
4 statutory requirements for reinstatement of driving privileges
5 including, but not limited to, the payment of processing and
6 reinstatement fees, as provided for in Section 6-212 of Title 47 of
7 the Oklahoma Statutes.

8 F. If the court or the OAH, as applicable, is unable to secure
9 the driver license held by the person found to be in noncompliance
10 with an order of support, Service Oklahoma, upon revoking the
11 driving privilege of the person, shall require that the driver
12 license held by the person be surrendered to Service Oklahoma. Upon
13 reinstatement of the person's driving privileges as provided for by
14 law, the person's valid and lawful driver license shall be returned
15 to the person by Service Oklahoma if the person is otherwise
16 eligible.

17 SECTION 4. This act shall become effective November 1, 2026.

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19 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
20 OVERSIGHT, dated 03/03/2026 - DO PASS, As Amended and Coauthored.
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